

25PSCV02929 25PSCV02929

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-06-23

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Case Number: 25PSCV02929 Hearing Date: June 23, 2026 Dept: G

Defendant Blue Hill Specialty Insurance Co.

Inc.'s Motion for Reconsideration and/or to Vacate the Court's April 29, 2026

Order

Respondent:

Plaintiff Karla Garduno

Plaintiff

Karla Garduno's Motion for Reconsideration, or in the Alternative, for

Clarification

Respondent:

Defendant Blue Hill Specialty Insurance Co. Inc.

TENTATIVE

RULING

Defendant

Blue Hill Specialty Insurance Co. Inc.'s Motion for Reconsideration is GRANTED.

Plaintiff

Karla Garduno's Motion for Clarification is GRANTED.

BACKGROUND

This

is an action for insurance protection. On

October 1, 2022, plaintiff Karla Garduno (Garduno) rode in a motor vehicle as

the passenger of defendant Lionel Chavez (Chavez), driving on behalf of

rideshare company defendant Uber Technologies, Inc. (Uber). During the trip, the motor vehicle of

nonparty Ricardo Ramos (Ramos) collided with that of Chavez, injuring Garduno. At the time of the collision, defendants Blue

Hill Specialty Insurance Co. Inc. (Blue Hill) and Progressive Insurance Co.

(Progressive) allegedly had insurance policies afforded to cover Garduno's

injuries from the collision. However,

Blue Hill and Progressive allegedly failed to provide Garduno with the full

benefits under the insurance contract(s).

On

June 16, 2025, Blue Hill filed a Petition in the uninsured motorist action

(case no. 25PSCP00333).

On

August 12, 2025, Garduno filed the Complaint in this action (case no.

25PSCV02929), alleging causes of action for (1) breach of insurance contract,

(2) breach of the implied covenant of good faith and fair dealing, (3) unfair insurance business practices in violation of Insurance Code section 790.03, (4) unfair business practices in violation of Business and Professions Code sections 17200 and 17500, (5) unjust enrichment, and (6) fraud. (The first cause of action was subsequently dismissed.)

On

April 29, 2026, the court issued a tentative ruling denying a motion to compel arbitration under Code of Civil Procedure section 1281 and granting the motion under the doctrine of equitable estoppel.

In response to the court's tentative, Garduno dismissed the first cause of action for breach of contract, and the court modified the tentative ruling to deem moot the motion for arbitration under the doctrine of equitable estoppel. The court's final ruling reflects that the motion to compel arbitration is denied under Section 1281 and deemed moot under equitable estoppel but omits a ruling on the request for a stay of proceedings.

On

May 8, 2026, Blue Hill filed a motion for reconsideration, or in the alternative, to vacate order. On June 9, 2026, Garduno filed the oppositions (one in this action and one in the

uninsured motorist action), and on June 15, 2026, Blue Hill filed the reply.

On

May 11, 2026, Garduno filed a motion for reconsideration, or in the

alternative, for clarification. On June

9, 2026, Blue Hill filed the opposition, and on June 15, 2026, Garduno filed

the reply.

This

case is set for a case management conference, an order to show cause re:

failure to file proof of service, a hearing on motions to compel further

discovery responses (setting date only), and a hearing on the motions for

reconsideration on June 23, 2026. (There

is also a continued hearing on a motion to compel further deposition and a motion

for protective order in the uninsured motorist action set for hearing on the

same date.)

ANALYSIS

Blue

Hill seeks reconsideration of court's April 29, 2026 order denying the motion

to compel arbitration and omitting the issue of staying proceedings. Garduno seeks clarification of the court's

April 29, 2026 order in the uninsured motorist action concerning discovery. For the following reasons, the court GRANTS

the motions.

Legal

Standard

Code

of Civil Procedure section 1008 "specifies the court's jurisdiction with regard

to applications for reconsideration of its orders and renewals of previous

motions and applies to all applications to reconsider any order of a judge or

court, or for the renewal of a previous motion, whether the order deciding the

previous matter or motion is interim or final.

No application to reconsider any order or for the renewal of a previous

motion may be considered by any judge or court unless made according to this

section." (Code Civ. Proc., § 1008,

subd. (e).)

Section

1008 sets out two means by which a party can seek reconsideration of a prior

trial court order. First, "[w]hen an

application for an order has been made to a judge, or to a court, and refused

in whole or in part, or granted, or granted conditionally, or on terms, any

party affected by the order may, within 10 days after service upon the party of

written notice of entry of the order and based upon new or different facts,

circumstances, or law, make application to the same judge or court that made the

order, to reconsider the matter and modify, amend, or revoke the prior

order.” (Code Civ. Proc., § 1008, subd.

(a).) Second, “A party who originally

made an application for an order which was refused in whole or part, or granted

conditionally or on terms, may make a subsequent application for the same order

upon new or different facts, circumstances, or law, in which case it shall be

shown by affidavit what application was made before, when and to what judge,

what order or decisions were made, and what new or different facts,

circumstances, or law are claimed to be shown.”

(Code Civ. Proc., § 1008, subd. (b).)

A

court has the authority to “amend and control its process and orders so as to

make them conform to law and justice.”

(Code Civ. Proc., § 128, subd. (a)(8).)

When jurisdiction is conferred on a court, all the means necessary to

carry its jurisdiction into effect are also given, including the authority to

amend judgments and orders. (Code Civ.

Proc., § 187; see *McClellan v. Northridge Park Townhome Owners Assn., Inc.*

(2001) 89 Cal.App.4th 746, 753–756.) The

court may also correct clerical mistakes in its judgment or orders sua sponte

or based on a party's motion. (Code Civ.

Proc., § 473, subd. (d).)

Discussion

Blue

Hill's Motion

Blue

Hill argues that the court's April 29, 2026 order incorrectly mooted the request

for a stay of proceedings. The court

agrees.

Pursuant

to the parties' discussion with the court, Garduno dismissed the first cause of

action for breach of contract without prejudice, the court denied the motion to

compel arbitration under Code of Civil Procedure section 1281, the court deemed

moot the motion to compel arbitration under the doctrine of equitable estoppel,

and the parties agreed to arbitrate the uninsured motorist claim. (See 4/29/2026 Min. Order, pp. 1–2; see

also 4/29/2026 Order Re: Court's Final Ruling, pp. 1–3.) The court struck the portions of the final

ruling concerning Blue Hill's request for a stay of proceedings. (See 4/29/2026 Order Re: Court's Final

Ruling, p. 3.) Since the parties agreed

to arbitrate the uninsured motorist claim, the court should not have struck the

portions of its ruling regarding the stay of proceedings.

Therefore,

the court GRANTS the motion for reconsideration and STAYS these

proceedings pending completion of arbitration.

Garduno's

Motion

Garuno

argues that the court's ruling granting Blue Hill's discovery motions in the uninsured

motorist action creates a risk of contradictory discovery rulings. The court agrees.

The

court ordered Garduno to comply with Blue Hill's discovery request in the

uninsured motorist action. (See 25PSCP00333 4/29/2026 Min. Order, pp. 1–2; see also 25PSCV00333 Order

Re: Court's Final Ruling, pp. 1, 3, 5.)

However, the court's rulings in the bad faith action concerning

arbitration do not mention how the court and arbitrator will handle discovery

issues. (See 4/29/2026 Min. Order,

pp. 1–2.) Since there are multiple

proceedings concerning the same legal issues, there is a risk of contradictory

discovery rulings. To avoid potential

conflicts, the court will (1) stay proceedings and discovery as they relate to the

bad faith claims and (2) decide the discovery issues that arise in the

arbitration proceeding regarding the uninsured motorist claims.

Therefore, the court GRANTS the motion for

clarification.

CONCLUSION

For

these reasons, defendant Blue Hill Insurance Co. Inc.'s motion for

reconsideration is GRANTED. These

proceedings are STAYED pending arbitration.

Plaintiff

Karla Garduno's motion for clarification is GRANTED. The court will decide the discovery issues

that arise in the arbitration proceeding, and the arbitration will be bound by

the court's discovery rulings.